THE STATE
versus
ELTON PARDON alias GAZA

HIGH COURT OF ZIMBABWE
MUCHAWA J
HARARE; 4, 6, 14, 27 March, 22 September 2025 & 25 February 2026

Criminal Trial

ASSESSORS: 1. Mr *Barwa*
2. Mrs *Mawoneke*

Mr *A Masamha*, for the State
Mr *W Bherebende*, for the accused

MUCHAWA J: The accused person stands charged of contravening s 47 of the Criminal Law (Codification and Reform) Act, [*Chapter 9:23*]; being murder.

It is alleged that on 22 May 2021 and at house number 14449 Damafalls, Ruwa, the accused with intent to kill or realizing that there was a real risk or possibility that his conduct might cause death but continued in that conduct all the same, assaulted Tinotenda Mandiyanike with a baton stick, electric cables and a wheel spanner all over the body thereby causing injuries from which Tinotenda Mandiyanike died.

Summary of the State Case

The accused together with Masimba Makoto and Wallen Mupunga, both of whom were tried and convicted separately and already sentenced to life imprisonment, are said to have assaulted the deceased. They had confronted the deceased and one Stanley Kahari accusing them of having stolen some drugs which included crystal meth, seven pairs of jean trousers and cash amounting to US$300 from Masimba Makoto's house. The assault was aimed at eliciting a confession. They were assaulted using electric cables, a baton stick and car jumpers. Burning plastics were also dropped on the deceased and Stanley Kahari. At some point the deceased was

bundled into Masimba Makoto's car and driven to his home to recover the money. Such money was not found despite searches in the presence of the deceased's sister Vivienne Mandiyanike and Mirriam Mangozho, a housemaid.

Thereafter the deceased was taken to Sunway City and the assault continued. Members of the public who tried to respond to the deceased's cry for help were threatened. It was discovered that the deceased was unconscious and the accused persons drove to Windsor 24 Hour Clinic where a doctor confirmed that the deceased had died and referred them to the police station to make a report. They did not do that but went back to the deceased's house and advised them that the deceased had escaped and they were searching for him.

At night they drove past the tollgate in Norton, along the Harare-Bulawayo Road and dumped the deceased's body whilst staging an accident scene. Indeed around 2200 hours ZRP Norton Traffic received a report of a road traffic accident and attended the scene and lodged the deceased's body at Norton Hospital mortuary.

Investigations later led to the arrest of Wallen Mupunga on 30 May 2021. Wallen Mupunga implicated Masimba Makoto who then handed himself to the police on 11 August 2021.

The accused was only arrested on 16 May 2024.

A post mortem examination was conducted on the body of the deceased by Doctor Yoandry Olay Mayedo. He concluded that death was due to (a) bepoliet occipital subdural hematoma (b) severe head trauma.

Accused's Defence Outline

In his defence outline, the accused did not challenge the evidence of 10 State witnesses. He consented to the production of the following exhibits: the postmortem report, his warned and cautioned statement, baton stick, wheel spanner and video footage.

In his defence he stated that Masimba Makoto was in the business of selling drugs at his residence which had been converted into a drug den. Stanley Kahari, Wallen Mapunga, the deceased and himself had been recruited by Masimba Makoto to sell drugs on his behalf.

He said on 22 May 2021, just after midnight, Masimba Makoto had confronted him and assaulted him with a baton stick accusing him of having stolen some drugs including crystal meth, seven pairs of trousers and USD300.00 from his house. The assault only stopped when it

was established that the accused had not been at the house at the time of the alleged theft. Thereafter, around 03.00 hrs. on 23 May 2021, the confrontation was shifted to the deceased and Stanley Kahari as thieves.

Stanley Kahari and the deceased denied stealing the property and Masimba Makoto locked the door and ordered Wallen Mapunga and the accused to assist him to assault the two to induce a confession. He says he participated in the assault as Masimba Makoto threatened to kill him if he did not comply. He therefore complied out of fear.

When the deceased confessed to having stolen the property, the assault on Stanley Kahari stopped. The deceased then volunteered to lead Masimba Makoto to his residence in Ruwa to recover the stolen property. The accused said that he and Wallen Mapunga accompanied them to deceased's home so as to prevent the deceased from escaping.

No recoveries were however, made at the deceased's residence leading to further assaults in Sunway City where Masimba Makoto had driven to. The accused said he was also assaulted in Sunway City with a baton stick by Masimba Makoto who accused him of not hitting the deceased hard enough. The accused then advised Masimba Makoto that the deceased was unconscious. Masimba Makoto drove to Windsor 24-Hour Clinic where a doctor pronounced the deceased dead and advised them to report at the police station. This was not done. Instead, later in the day they staged a hit and run by dumping the body by a roadside.

Though admitting to participating in the assault, the accused denies any intention to kill the deceased nor a realization of this occurring. He said that he did not voluntarily associate with Masimba Makoto to inflict harm on the deceased who was a close friend. Instead, he was compelled and forced to commit the assault. He only got an opportunity to escape from Masimba Makoto when they went to a traditional healer's place in Norton after disposing of the deceased's body. He then immediately went to CID offices at Harare Central Police Station and made a report that Masimba Makoto had killed the deceased. He was attended to by one Hove who took his details and said he would call him once the report had been verified by Ruwa police.

When he got home, he heard that Masimba Makoto was hunting for him and fearing for his life he fled to South Africa.

He prayed that he be found not guilty and acquitted.

The State Case.

The State opened its case by tendering copies of the postmortem report and the accused's warned and cautioned statement and the video footage of the indications without any objections. These were entered as exhibits 1, 2 and 3 respectively.

The evidence of the following witnesses was admitted without objections in terms of s 314 of the Criminal Procedure and Evidence Act [*Chapter 9:07*].

1. Beauty Gudo
2. Lovemore Rwadza
3. Vivienne Mandiyanike
4. Blessing Mamvura
5. Martin Mubeto
6. Catherine Makara
7. Owen Safuri
8. Tinashe Timothy Marisa
9. Mirriam Mangozho
10. Putirai Majoni

The first witness who gave oral evidence is **Masimba Makoto** called as principal accomplice witness in terms of s 267 of the Criminal Law and Procedure Act [*Chapter 9:07*]. He was already charged, tried and convicted of murder arising from his assault of Tinotenda Mandiyanike. He was jointly charged with Wallen Mupunga and they were both sentenced to life imprisonment in January 2025.

He said the offence was committed by three people being Wallen Mupunga, the accused and himself. He said he knew the accused person as someone who stayed in the same neighbourhood and they had known each other for some time.

He said that they had used a baton stick and hands to assault the deceased. There was one baton stick which they used in rotation whilst others used hands. The assault had not been continuous and had happened in different places. He denied that the electric cables and wheel spanner had been used to assault the deceased though these were there. He denied the presence of car jumpers. The accused had been present throughout the assault and was the one who spoke to the doctor when they went to the Windsor 24-hour clinic. They had only realized that the

deceased was dead when the doctor told them. They panicked and went to dump the body along the Harare-Bulawayo Road.

The allegations against the deceased were that he had also stolen Masimba Makoto's jeans and money. The property was not recovered. Both Wallen Mupunga and the accused were his friends. Wallen Mupunga was a welder whom he would employ to do some work for him. Masimba Makoto owned some commuter omnibuses and that is how they got acquainted.

According to Masimba Makoto, there was no bad blood with the accused. He believes that the accused got involved in the assault as the issue started in his presence. He had not invited him to join in the assault.

Masimba Makoto denied that the accused person had been his first suspect in the theft and had assaulted him and only stopped when it had been confirmed that he had not been at the house at the material time. He said this was not possible as he had spent the day with the accused person.

It was also denied that the next suspects had been the deceased and Stanley Kahari. He said he had not confronted Stanley Kahari and only questioned the deceased. Denied too was the allegation that when the deceased and Stanley Kahari denied the theft, Masimba Makoto had locked the door and ordered the accused and Wallen Mupunga to help assault them till the items were recovered. He said the door had never been locked and the deceased had admitted to the theft and led them to his residence to check for the money in his short. He had not forced anyone to join in the assault nor had he threatened the accused with death if he did not cooperate in the assault. According to Masimba Makoto, it was the accused who severely assaulted the deceased and had even assaulted him in the presence of the deceased's sister.

Another denial was in respect to the accused's allegation that Masimba Makoto had assaulted him in Sunway City with a baton stick for not hitting the deceased enough. This witness explained that that the deceased was small in stature and young and he would not have required any assistance in assaulting him as he was the owner of the stolen goods.

Regarding the disposal of the body along the Harare-Bulawayo Road, Masimba Makoto said that it was the accused's idea as he had suggested that they go to the police.

Under cross examination, Masimba Makoto was reminded that he had initially denied the offence and had said that it was the now accused person who had assaulted the deceased till his death. It was only during the defence case that he had confessed to his role in the murder.

Masimba Makoto had been aged 37 years at the time of the offence whilst the accused was 24 years old. He confirmed that he had known the accused who was a commuter omnibus driver because he owned commuter omnibuses. He however, denied that he used to supply a drug called dagga to such drivers.

It was confirmed that the deceased had died during the Covid era when there were travelling restrictions and the accused was not employed then as a commuter omnibus driver. He however, denied that he had engaged the accused as his personal driver who would drive his children to school. He said his grade 7 son would travel by commuter omnibus whilst the other child went to Ruvheneko school which was close.

Masimba Makoto denied that the accused was staying at his house as a driver and said it was a lie as he would drive himself and accused's residence was nearby. He could not explain why the accused was at his house at 12 midnight when the assault allegedly started.

Despite the evidence of Martin Mubeto, a police officer that when he visited Masimba Makoto's house, he realized it was a drug den and there were several intoxicated young people, this witness denied that he was in the business of selling drugs including crystal meth. His explanation was that these were commuter omnibus touts who would come to his house drunk in order to while away time as it was during the Covid era.

The witness denied that he had accused the deceased of stealing crystal meth.

Wallen Mupunga's presence was explained as a welder who has come to collect money for curtain rails he had done for Masimba Makoto. He however, denied too that he had told Wallen Mupunga that he would only be paid after the recovery of the stolen money. It was Wallen Mupunga who had brought the baton stick much earlier to Masimba Makoto's house. The reason given is that he forgot it at Masimba Makoto's house and it was denied that it was a weapon used to beat up people considered troublesome in the drug business.

Masimba Makoto vehemently denied having assaulted Stanley Kahari at any time. He denied having locked the door when the assault started in his house. However, he said the

accused could not escape as Masimba Makoto was seated on a sofa located by the door whilst the accused was sitting on a sofa far away from the door.

It was admitted that when they got to the deceased's house, Masimba Makoto and Wallen Mupunga alighted whilst the accused remained inside guarding the deceased. It was denied that the deceased's sister had pleaded with them to release the deceased with an undertaking to pay the money.

Masimba Makoto admitted that be had been the one driving his vehicle all the time till the dumping of the body.

It was denied too that after dumping the body, they had visited Masimba Makoto's traditional healer and the accused had fled from there. He claimed that they had spent 3 days together. He denied that he had visited the accused's home looking for him. His version was that he had gone to Mt Darwin to tell his grand father about the incident. The car broke down and he failed to reach his grandfather's place with the accused who returned, and he proceeded.

We will address the credibility of this witness in our analysis.

The second State witness was **Wallen Mupunga**. He too was already convicted of this same offence and sentenced to life imprisonment.

His evidence was that he stayed in Damafalls as did the accused and they both worked for Masimba Makoto. The accused was employed to sell drugs.

On the fateful day the deceased is alleged to have confessed to stealing from Masimba Makoto so they went to his home to search for the money and jeans. This was after he had been assaulted at Masimba's house. The money was not located at the deceased's home and he directed them to Zimre Park for the jeans. This infuriated the assailants further and they continued assaulting him all the way to Sunway City and back to Damafalls. The accused noted the deceased was no longer breathing and they took him to the 24-hour surgery. They were referred to the police, panicked and went to dump the body in Norton.

Whilst admitting to knowledge of Stanley Kahari, Wallen Mupunga denied that he was present in the house where the assault took place.

The witness confirmed that he was a welder to Masimba Makoto who had gone to collect his dues on the day of the fatal assault. He joined in the assault as Masimba said that his dues had been stolen by the deceased.

Wallen Mupunga said that the accused person had been first suspected of being the thief. In assaulting the deceased, they had used a baton stick, jumpers and hands and they would take turns. The accused was said to have participated in the assault since he was also in the same house. The assault had not ended at Masimba Makoto's house but had continued in different locations.

The allegedly stolen goods were said to be money, jeans and crystal meth. Wallen Mupunga said that he had not seen the accused being forced by Masimba Makoto to assault the deceased nor did he hear any threats uttered.

When pressed to comment on whether they had been forced by Masimba Makoto to assault the deceased he said.

"That is true Masimba forced us to assault the deceased."

This, he said, meant they were told to assault the deceased. When asked whether danger would have ensued if they had not assaulted the deceased, he said that;

"I do not know as that is not what happened."

When asked to comment whether the accused had been assaulted by Masimba Makoto as the first suspect, he said he does not know as he was not there.

Wallen Mupunga confirmed that they had been together with the accused throughout the assault and even when the body was dumped. When asked whether the accused was forced to be there, he said;

"Maybe he was forced by the situation."

When further pressed, Wallen Mupunga said that if the accused had wanted, he could have escaped.

He confirmed that he was the one who had brought the baton stick but the jumpers were in Masimba Makoto's car. He denied that they had tied the deceased with shoe laces and joined his hands and legs together. Denied too was that they had tied an iron rod to deceased's legs.

Wallen Mupunga said he had parted with the accused in Domboshava, a day after dumping of the deceased's body. He refuted that they had passed through a traditional healer in Norton but said they passed through Glen View where Masimba Makoto used to stay.

Under cross examination, the witness confirmed that the accused was employed by Masimba Makoto to sell drugs. Masimba Makoto as accused's employer was said to have

exercised control over the accused and was even staying at Masimba Makoto's house in one of the cars. He further confirmed that the assault against the deceased had started around midnight. When he arrived at around 4.00 pm Masimba Makoto was not there, and he told him to wait. Masimba Makoto then arrived around 7.00 pm.

According to Wallen Mupunga, Masimba Makoto had initiated the assault as it was his property which had been stolen. On his part he had been advised that his dues would be paid from the recovered money. He could not give a reason why the accused joined in the assault except to say he had previously been suspected of being the thief.

It was revealed that when the assault started, the accused could not go out as the door was locked. This was because this door was always locked as this was a place where drugs were sold.

When it was put to Wallen Mupunga that he had given conflicting evidence on whether Masimba Makoto forced the accused to participate in the assault, he said

"I am not disputing"

We will address Wallen Mupunga's credibility in our analysis below.

Thereafter the state produced exhibit 4, the baton stick and exhibit 5, the cross spanner without objections and closed its case.

The Defence Case

The accused adopted his defence outline. He knew the deceased as a friend as they grew up together. The deceased was a conductor in kombis he drove whilst working for Masimba Makoto for about a year and some months. So Masimba Makoto was their employer first in those capacities then in selling drugs. The accused had known Masimba Makoto since 2018 to 22 May 2021, being the day of the offence. At the time of the offence the accused, the deceased and Stanley Kahari were staying at Masimba Makoto's house in cars parked there. Other than selling drugs (crystal meth and dagga) the accused was responsible for driving Masimba Makoto's children to school.

On the day in question, the accused said he had spent the day with Masimba Makoto who was ordering drugs and only arrived home around 7.00 pm. Stanley Kahari and the deceased had spent the day selling drugs. They then started taking crystal meth and a whiskey. It was then that Wallen Mupunga arrived and joined in. It was around midnight that Masimba Makoto raised the

issue of stolen money (USD 300.00), 20g crystal meth and jeans from the U.K. Wallen was told to collect jumping cables from the car. These were used to hit the accused on the ear which allegedly broke. He also used the baton stick to assault accused on the back. The baton stick had been brought by Wallen Mupunga as a weapon to deal with those who failed to pay for drugs and those who became troublesome after getting too drunk. Wallen Mupunga then reminded Masimba Makoto that the accused could not be the thief as the theft had happened when the accused was away with Masimba Makoto.

It was at this stage that the accusations turned to Stanley Kahari and the deceased who had spent the whole day at the house. Masimba Makoto then locked the door and instructed the accused and Wallen Mapunga to manhandle the deceased and Stanley Kahari so that they could remove their clothes and sit down. The accused, who was already nursing pain from his own assault wanted to refuse but was told by Masimba Makoto that if he did not cooperate the assault would return on him and he would be killed.

Masimba Makoto started by assaulting Stanley Kahari and the deceased on the knees with a wheel spanner. Stanley Kahari told the deceased to tell the truth or they would die. The deceased then admitted to the theft. Wallen then took a shoe lace and an iron rod used in the gym and tied it on the deceased's legs to bar him from escaping. The deceased then volunteered to lead them to his house for recovery of the money. The accused's role had been to hold the deceased down.

Stanley Kahari was assaulted to the extent of being helped to go to the police station after being locked in the house.

Masimba Makoto, Wallen Mupunga, accused and the deceased then went to the deceased' home. Masimba Makoto was driving with Wallen Mupunga in front whilst the accused sat in the back seat with the deceased. It is alleged that the back doors had a child lock and only Masimba Makoto and Wallen Mupunga were in the front seat. At the deceased's home no money was recovered and his sister pleaded that they should leave him and his mother would send money from South Africa. This was declined and Masimba Makoto said that since there was no money they would not leave the deceased and it was deceased's sister's last time to see her brother.

At that stage, the accused said that he had proposed that they go to the police, but Masimba Makoto refused and chided the accused telling him to be silent and that his being

forgiven did not mean that he had not stolen the money. From deceased's home in Chipukutu they drove to Sunway City. Everyone alighted and the assault on the deceased continued targeting the head. The deceased fell into a ditch and at that point Masimba Makoto charged towards the accused and hit him on the nose with the baton stick. He was accused of just standing and not assaulting the deceased. He broke his nose from the assault. Wallen Mupungu was using the car jumper cables to assault indiscriminately all over the body.

This was around 8.00 am and a vendor approached but was threatened by Wallen Mupunga with the cables. The vendor ran away.

It was the accused who noticed that the deceased was very weak and told Masimba Makoto. This is when the assault stopped. Even though both the accused and Wallen were assaulting the deceased it was Masimba Makoto who wielded the baton stick who did the most damage.

The accused insisted that he had not voluntarily participated in the assault as he had no reason to assault the deceased who was his friend. He only participated due to a threat from Masimba Makoto that he would be killed if he refused. He had been the first one to be assaulted and knew Masimba Makoto was a bully and used to carry a gun. He had not escaped at the house because the door was locked and in the car because of the child lock.

Upon noticing that the deceased was unconscious, they ferried him to the Windsor 24-hour clinic. A doctor pronounced the deceased dead upon arrival and referred them to the police. Masimba Makoto however decided that they head to Norton and dump the body there. It was when they passed through Masimba Makoto's traditional healer that the accused fled when he was left with Wallen Mupunga. He used the pretext of going to the toilet and jumped over a fence into a field and ran. He denied that they had separated in Mt Darwin or Domboshava. After his escape around 3.00pm. he hid in the bush and emerged around 4.00pm or 5.00pm and approached the road after the Norton toll gate. At the road he had been assisted by a man driving a Honda Fit to whom he explained what had happened. He was taken to Harare Central Police Station CID Homicide where he was attended by one Hove. He gave a statement clearly speaking to the deceased's death and the roles of Masimba Makoto and Wallen Mupunga. He also opened up about the drugs they had taken, and his details were noted and the officer said he would verify the case of murder and get hold of him.

The accused got home around 8.00pm and learnt that Masimba Makoto was looking for him. Knowing how he was a mafia gangster boss with an army of people from Mbare and Glenview, the accused panicked and fled to South Africa.

Under cross examination, the accused confirmed his role in the assault. He however said he had not put all his force in assaulting the deceased as he had no motive but was forced. He also was not armed, unlike Wallen Mupunga and Masimba Makoto. He reiterated that he had been threatened by Masimba Makoto.

Furthermore, the accused admitted that he had been voluntarily drunk on the night in question. Whilst in South Africa, he had undergone rehabilitation. The drug they used was said to have the effect of making one lose sleep and have too much concentration on a particular issue.

Under cross examination, the accused was quizzed about why his warned and cautioned statement had not explicitly stated that Masimba Makoto had threatened to kill him. He explained that it did say Masimba Makoto had forced him to participate.

The accused's story about fleeing in Norton was poked at as it was contrary to his statement to the police wherein, he said they had gone back to Damafalls where they parted ways. He said that there was a mistake in the police statement.

It was clarified that though the accused knew Masimba Makoto had a firearm it had not been pointed at him on the date in question. The accused could not explain why he had opted to flee all the way to South Africa instead of reporting to the police stations along the way and why he had not handed himself to the police upon his return. All he said was that he was afraid of Masimba Makoto who he knew was violent, who had threatened him and assaulted him, injuring him on the nose and ear for which he was treated in South Africa.

The accused clarified that this was not his first time of being assaulted by Masimba Makoto. He had been assaulted earlier in February 2021 on allegations of having stolen crystal meth. The baton stick had been used under his feet. Despite knowing all this about Masimba Makoto, the accused had continued to associate with him because during Covid, there were no other jobs available.

This made up the accused's case

Common Cause Facts.

At the close of the State and defence cases the following facts emerged as common cause.

1. That the deceased and accused persons were friends who were working for Masimba Makoto an already convicted accomplice
2. The deceased was suspected of having stolen some cash, drugs and jeans from Masimba Makoto.
3. That the accused person and his convicted accomplices assaulted the deceased for a protracted period leading to, *inter alia*, severe head trauma and bipolet occipital subdural hematoma. This was the cause of the deceased's death.
4. The deceased's body was dumped in Norton after faking a hit and run road accident.
5. Masimba Makoto was aged 38 years whilst the accused was aged 24 years at the time of the offence.

Disputed Facts

The deciding disputed fact is whether the accused was compelled by Masimba Makoto to assault the deceased.

The defence of compulsion is provided for as a complete defence in s 243 and 244 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. Compulsion is given as a complete defence in section 243 and section 244 contains additional requirements where one is facing a charge of murder.

To be a complete defence, the compulsion must consist of a threat unlawfully to kill the accused or some other person immediately if the accused did not kill or assist killing the deceased. The accused must show that he could not escape from or resist the threat referred to and the accused had no warning of the threat referred to, to enable him to forestall it, whether by reporting the matter to the police or by other means. In addition, the accused person should satisfy the requirements in section 243 (1) (b), (c) and (d). It must be shown that he or she believed on reasonable grounds that the implementation of the threat had begun or was imminent. The threat must also not be brought about through his own fault and he or she must have believed that on reasonable grounds that she/he could not escape or resist from the threat and that his or her conduct was necessary to avert the implementation of the threat.

The first issue to be decided is whether Masimba Makoto gave out a threat unlawfully to kill the accused if he did not assist in killing the deceased.

Masimba Makoto outrightly denied this. As the principal perpetrator, his accomplice evidence has to be treated with caution in terms of s 267 of the Criminal Procedure and Evidence Act [*Chapter 9:07*]. In the case of *Elphas Ncube* v *The State* SC 33/2016 GOWORA JA (as she then was) had this to say about accomplice evidence:

> "The reason for the existence of the cautionary rule regarding the evidence of accomplice witnesses in criminal trials is trite. An accomplice is a self-confessed criminal, and various considerations may lead him to falsely implicate an accused person, such as the desire to shield the culprit, or the hope of clemency where he has not yet been sentenced. Additionally, by reason of his inside knowledge he has a deceptive facility for a convincing description of facts, his only fiction being the substitution of the accused for the real culprit.
>
> The rule requires that the court should warn itself of the danger of convicting on the evidence of an accomplice. Having done so by contrasting the evidence of the accomplice with that of the accused and viewing it against all the surrounding circumstances and the general probabilities of the case, the court must be satisfied beyond a reasonable doubt that the danger of false incrimination has been eliminated. It is not enough for the trial court to merely warn itself of the dangers of false incrimination and then convict simply on its faith in the honesty of the accomplice witness, based on nothing more than his demeanor and the plausibility of his story."

In applying the above test, we found Masimba Makoto's evidence to be incredible or implausible. He did everything possible to deny any evidence which would show the depth of his unlawful acts in order to minimize his involvement in the commission of the offence. The following examples are illustrative.

1. He denied that he was the accused's employer when the evidence of Wallen Mupunga and the accused clearly established so.
2. He denied that he was operating a drug den and that part of the stolen property included crystal meth when the evidence of the accused and Wallen Mupunga proved the contrary.
3. Whereas Masimba Makoto's defence in his own trial had been to initially distance himself from the assault on the deceased and claiming that it was the accused who single-handedly assaulted the deceased, he now claims that all three of them assaulted the deceased.
4. Another outright lie was Masimba Makoto's denial that the accused was staying at his house. This was refuted by the evidence of the accused and Wallen Mupunga that the accused stayed in one of the cars at Masimba Makoto's house.
5. Masimba Makoto insisted that the door to the room in which the assault occurred was unlocked contrary to the evidence of both the accused and Wallen Mupungu.

6. Masimba Makoto denied having initially accused the accused person of being the thief despite the evidence of both Wallen Mupunga and the accused.
7. He also denied that he assaulted the accused first before turning on the deceased and Stanley Kahari.
8. Masimba Makoto lied that his son would use commuter omnibuses to go to school and was not driven there in a private vehicle by the accused, yet it was agreed that during this period public transport, including commuter omnibuses, were banned.

What Masimba Makoto did was to deny any form of control he may have wielded upon the accused. This is why he denied that he was his employer. He denied that the accused lived at his house. He lied that he had not assaulted the accused first on suspicion of being the thief. But as we saw, his method of dealing with suspected thieves was to assault them, as he did with the deceased. He even lied that the door was unlocked in order to give the impression that the accused had been free to leave but voluntarily associated in the assault on the deceased.

We found that Masimba Makoto was not a credible witness on several critical issues and rejected his testimony.

Wallen Mupunga's evidence is also subject to the cautionary rule as he was also an accomplice. He gave conflicting evidence regarding whether the accused had been forced by Masimba Makoto to perpetrate the assault. When quizzed about his conflicting evidence he said that he was not disputing that his evidence was inconsistent. In one breath he said the accused was forced and would change to say he was not forced. He even qualified this to say that the deceased had been forced by circumstances which circumstances he did not elaborate. It appeared to us that Wallen Mupunga was torn between shielding Masimba Makoto and telling the truth.

We therefore had to contrast the evidence of the accomplices with that of the accused and view such evidence against all the surrounding circumstances and the general probability of the case. In a way, these are the circumstances Wallen Mupunga referred to.

The accused was 24 years old and economically dependent on Masimba Makoto during the Covid era. Masimba Makoto was around 39 years old. The accused was even

living in a motor vehicle at Masimba Makoto's house because that is what he prescribed for the kind of work they were doing, that is selling drugs. This is why the accused was at Masimba Makoto's house at 12:00 midnight on the date in question.

As an employee of Masimba Makoto the accused was under his control.

Masimba Makoto's methods of dealing with thieves was assaulting them. This is what he did to the deceased. He had suspected the accused of the theft first. It follows that his usual method had followed. An assault on the accused. This only stopped when he was reminded that he had spent the day with the accused. The door was locked as per Walen Mupunga and accused's testimony.

The accused said that he was friends with the deceased whom he had been working closely with. They had grown up together and he had been a conductor in commuter omnibuses he drove. By then, due to the Covid restrictions, they were selling drugs for Masimba Makoto. Why would he voluntarily assault his friend? Masimba Makoto was seeking a confession regarding his stolen items. Wallen Mupunga wanted the stolen money recovered so he could be paid. There is no clear reason why the accused would voluntarily join in the assault.

We have no choice but to accept the accused's testimony that Masimba Makoto who already wielded control over him had threatened him unlawfully to assist in assaulting the deceased.

The evidence that the door was locked and Masimba Makoto's own evidence that he was sitting by the door hence making it impossible for the accused to flee shows that he could not escape from the threat.

The evidence shows that from around 7.00 pm to midnight the accused person and convicted accomplices had been drinking whiskey together and taking crystal meth. This means that the accused had no warning of the threat to enable him to forestall it.

The evidence that the accused was the first suspect to be assaulted for the theft and that he had been previously assaulted by use of the baton stick and knew that Masimba Makoto possessed a gun, shows that he had reasonable grounds to believe that implementation of the threat had begun or was imminent.

There is no basis to believe that the threat was brought about by the accused's own fault. He had experienced firsthand Masimba Makoto's ferocity as he assaulted him using a baton stick targeting the head area. He also saw how the deceased and Stanely Kahari were tied up, asked to remove their clothes and hit on the knees with a wheel spanner. He saw an iron bar tied to the legs to ensure no escape. The accused therefore had reasonable grounds to believe that he could not escape and his conduct was necessary to avert implementation of the threat.

Furthermore, the child locks on the car and the fact that Masimba Makoto was driving and in control of the events of the day confirms the accused's version.

The accused person has satisfied all the requirements for the defence of compulsion as a complete defence to murder. In the circumstances of this case, he cannot be found to have voluntarily associated with the two convicted accomplices in perpetrating the assault which resulted in the deceased's death.

We therefore find the accused not guilty of murder as defined in section 47 (1) of the Criminal Law (Codification and Reform) Act [Chapter 9:23] and acquit him.

MUCHAWA J: .....

National Prosecuting Authority, State Counsel.
Kadzere, Hungwe and Mandevere, Accused's legal Practitioners.